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File No.: EXP202204877

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: On March 21, 2022, a complaint was filed with the Spanish Agency for Data Protection against A.A.A., B.B.B., and VIDRERES NOTAR, S.L.U.

The reasons for the complaint are as follows:

The receipt of an email apparently from a notary in Vidreres (Girona) stating that they had carried out procedures a few years ago.

The email appears to be a malicious message that includes a zip file that is invited to be executed. The affected party fears that there may have been unauthorized access to their personal data.

Along with the notification, the following is provided:

- Screenshot of the email that they claim to have received on March 8, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent/ALIAS, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on May 16, 2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on May 26, 2022. In this notification, they were reminded of their obligation to communicate electronically with the Administration, and were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

On May 31, 2022, a response was received in this Agency stating the following:

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- They received at the Notary of Vidreres a certified letter addressed to Vidreres Notar, S.L.U., which, due to an unintentional error thinking it was addressed to the Notary of Vidreres, they opened.

- Mr. A.A.A., as the previous Notary of Vidreres and holder of the company Vidreres Notar, S.L.U. (to whom the letter sent by the AEPD is addressed), has been on leave from that Notary since February 9, 2022.

- Currently, the Notary of Vidreres, under the charge of the titular Notary Mr. B.B.B., is not a user or holder of the email accounts used by the previous Notary Mr. A.A.A. and the company Vidreres Notar, S.L.U.

On June 14 and 27, 2022, the complaint was forwarded to A.A.A., resulting in the first case where the electronic notification expired and in the second case, the postal notification was delivered to its recipient, without having obtained a response to it.

THIRD: On June 21, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General

Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

The complainant provides an image of the email they received, which shows the date of March 8, 2022, the sender's email address ***EMAIL.1, the recipient's email address of the complainant, the email address ***EMAIL.2 at the footer, and attaches a ZIP file. The domain of the sender's email address corresponds to Brazil.

On November 3, 2022, information was requested from A.A.A. regarding the reported facts, without obtaining a response to the request, so on December 14, 2022, the request for information was reiterated, having been received in this Agency on December 27, 2022, a letter from the respondent stating that they have no connection with the reported facts and attaching a copy of the email sent to the complainant informing them that they served as notary of Vidreres until February 9, 2022, the date since which they have been on leave.

On February 8, 2023, information was requested from B.B.B. regarding the reported facts, with a response letter received on February 24, 2023, stating that they took over the notary of Vidreres as a substitute in mid-February 2022, as a result of the leave of the previous notary A.A.A., and that they changed computers and IT systems and even renewed the staff. They state that since taking over the notary of Vidreres from mid-February 2022, they have not had the complainant as a client.

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and that the email of this (***EMAIL.3) is not registered in the information system of the current notary of Vidreres under their charge.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to

the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

III

Principles Relating to Processing

Point f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

IV

Conclusion

The complainant reports receiving an email apparently from a notary in Vidreres (Girona) stating that they had conducted transactions a few years ago. The email appears to be a malicious message that includes a zip file that is encouraged to be executed. The affected individual fears that unauthorized access to their personal data may have occurred.

The email is dated March 8, 2022, a date on which the notary with whom the complainant conducted transactions had ceased their activity due to leave. The notary in charge at the time the email was sent stated that they had not had the complainant as a client and that the complainant's email (***EMAIL.3) is not registered in the information system of the current notary of Vidreres under their charge.

During the preliminary investigative proceedings, it has not been possible to determine that the origin of the complainant's email address, processed by the sender of the email they claim to have received, is the notary of Vidreres owned by A.A.A. or the notary of Vidreres owned by B.B.B. It is also not ruled out that the address may have been obtained from the complainant's own information system.

Thus, as it has not been possible to attribute responsibility for the processing of the complainant's email address, according to what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

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In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the

Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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